OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Four housing committees become one: what did they cost and what did they deliver?

Sent 16 October 2026 · To Shoalhaven City Council · Response requested by 6 November 2026

OPEN LETTER

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
Copied to: The Mayor and all councillors
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 16 October 2026
Subject: CL26.284, four housing and planning committees become one. What you are doing about a committee system that has not delivered, and what the new arrangement changes

STATUS OF THIS LETTER

This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.

It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance,

Bottom line:

Council's own report concedes that the four committees overlap, tie up the same staff and risk “expending resources without achieving meaningful outcomes”.

It reports
no outcome,
no cost and
no action register for any of them, and
the replacement has none of those either.
1. Your function

Section 335 of the Local Government Act 1993 gives the general manager, the office Council styles Chief Executive Officer, three functions that bear directly on this:

"to conduct the day-to-day management of the council in accordance with the strategic plans, programs, strategies and policies of the council" (335(a));
"to advise the mayor and the governing body on the development and implementation of the strategic plans, programs, strategies and policies of the council" (335(c)); and
"to ensure that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions" (335(f)).
On 7 September I wrote to you about the committee system as a whole.

I asked, at Questions 9 and 10, for a report on
every committee,
taskforce,
working group,
panel and forum,
with cost,
meetings,
recommendations and status, and f
or a sunset provision.
CL26.284 deals with four bodies. It is not that report.
2. What your own report concedes

CL26.284 says there is "a considerable degree of overlap and duplication" between the four committees, that they are "largely serviced by the same professional staff", and that servicing them is "tying up and occupying resources that could otherwise be progressing", including the new Land Use Planning Scheme. Its risk section says that where committees are not working, Council "faces the risk of expending resources without achieving meaningful outcomes for either the organisation or the community". It adds that three of the four "resulted from Notices of Motion" in this term.

Five weeks ago, on 22 September, Council resolved to continue all four (MIN26.303), with terms and sitting-fee arrangements, and a review to follow. The report says the related report CL26.213 had already advised of the intent to consider consolidating them.

Question 1. When did staff first form the view that these committees overlapped and were tying up the same officers?

What advice on cost and overlap was given to Council when the Affordable Housing Action Taskforce (28 October 2024),

the Land Use Planning and Development Advisory Committee (September 2025) and the Low-Cost Rental Initiative Working Group (27 January 2026) were established?

And if consolidation was already intended, why were councillors asked on 22 September to continue all four?

1. What the report does not say

The Financial Implications section lists the kinds of cost:

administration,
report writing and executive review,
attendance “sometimes out of hours”,
minuting.
It gives no hours, no dollars and no full-time equivalent.

In October 2024 and September 2025 the same section was one unquantified paragraph, repeated word for word. It is now four bullet points. It is still no number.

On the assumptions published on 14 August (28 officer hours per report-bearing meeting at $105 an hour, about $2,900), the 16 meetings a year scheduled across these four bodies come to up to about $46,000 a year in officer time alone. That is my estimate, not Council's figure. Council has the real one.

The report also gives no result for any of the four. The Taskforce was resolved on 28 October 2024, first met in September 2025 and has met five times. Its meeting on 7 September 2026 had 25 people recorded present for 90 minutes, and three of its items were received for information. The Low-Cost Rental Working Group was resolved on 27 January 2026, to report back “as a matter of urgency”; the report records five expressions of interest for four community positions and no outcome.

Question 2. What did each of the four bodies cost in officer hours and dollars in 2025/26, and what will the new committee cost in a year? Why does the report to Council give no figure, and will you give councillors the figures before the meeting on 27 October, as section 335(f) requires?

Question 3. For each of the four bodies, how many recommendations has it made, how many has Council adopted, and how many have been completed? Why does the report not say?

1. What the new arrangement changes

The proposed Strategic Housing and Development Advisory Committee gives “non-binding advice”, has no delegated decision-making authority and “does not have the power to incur expenditure (directly or indirectly), or the power to bind Council”.

Every councillor votes, and a quorum is seven councillors.

That is the structure of the Land Use Planning committee, whose voting members are the Council itself, and about which Cr Boyd has twice asked in open session why it exists.

a70c67d1-d2e0-4b5a-bb71-5d75d4ef928f.pngTitle: Four committees become one - Description: Meetings fall from 16 to 4; voting community seats fall from 9 to 0; the new committee has 13 councillors, 5 development-industry bodies, 2 State agencies, 2 community housing providers and 2 crisis housing providers voting.

The Taskforce has five voting community representatives and the rental group four. The new committee lists none, yet its terms of office clause still refers to “Community member Appointments”.

It lists five seats for “Peak Development Industry Bodies”, and names none of them.

The report says “Community concerns have previously been raised about the development industry meeting directly with Council staff” and that “No external consultation was required for this report”.

The only community feedback it quotes asked for general community representatives to be kept.

The draft is unfinished. Its page headers still read “INSERT COMMITTEE NAME”, and its adoption date, minute number and review date are blank.

It says the committee “will be chaired by the Mayor” and also that the chair is “The Mayor or Councillor appointed by Council”. A drafting comment left in the margin of the membership clause says Council “will need to test their willingness to be involved in a committee of this nature”, meaning the State agencies.

It also says “Additional workshops or briefing sessions may be convened as required”, on the same agenda that asks Council to adopt a Briefings Committee (CL26.267) which, its own report says, “will create additional administrative requirements”.

Question 4. The report says these committees tie up staff needed for the new Land Use Planning Scheme. How many officer hours a year will the new arrangement release, given a larger voting membership, workshops “as required” and a separate Briefings Committee? What will those hours deliver on the Scheme, and by what dates?

Question 5. In two years and five meetings, the Taskforce's most substantive recommendation was on 7 September, to defer Strategy Action 1.2, a short-term action targeted for before the end of 2026. What will this committee deliver that the Taskforce did not, and what measure will tell Council whether it has?

Question 6. Why does the draft contain no general community seats, and what became of the feedback that asked for them? Have the five people who applied for the rental group's community positions been told that the group is to be abolished?

Question 7. Which five peak industry bodies would hold voting seats and how would they be chosen? What written safeguards, beyond a standing declaration, apply when the committee advises on a charge that falls on those same bodies? How does that sit with the concern the report itself records about industry meeting staff directly?

Question 8. Has any State agency agreed to take a seat? If DPHI and Homes NSW decline, what is the committee? Why are councillors being asked to adopt terms of reference that still read "INSERT COMMITTEE NAME", that give two different answers on who chairs, and that name no deputy chair, and will a corrected version be put to them before 27 October?

1. **Your advice to Council**

This is the third report in two years (October 2024, September 2025 and now) asking Council to decide the future of its committees with no cost figure, no results and no action register in front of it. The problems are not in doubt. They are on Council's own record, in Council's own words, and they have been the same each time.

Merging four committees into one does not address them. Section 335(c) makes it your job to advise the governing body, and 335(f) makes it your job to see that councillors have the information to act on that advice. On the evidence, councillors are being asked on 27 October to approve a recommendation with no information on what these committees cost or what they achieved.

Question 9.

What are you doing about the failures of the committee system as a whole, and the extensive use of staff time for little or no recorded outcome?
Specifically: will you advise Council, before the end of 2026, how to remedy it, with a costed register of every committee, an action register for every resolution, independent chairs where the body is meant to be independent, and a sunset date on every advisory body, including this one? And if the answer is that the new committee is the remedy, how, on the terms in front of Council, will it be one?
No adverse finding is made against any officer, councillor or committee member named here, and none is implied.

Documents relied on: Shoalhaven City Council Ordinary Meeting agenda, 27 October 2026, items CL26.265, CL26.267, CL26.284 (including Attachment 1, draft Terms of Reference) and CL26.289; Minutes of the Affordable Housing Action Taskforce, 7 September 2026; MIN24.518, MIN26.6 and MIN26.303; Local Government Act 1993 (NSW), s 335; and Eye on Shoalhaven Council, 14 August, 5 September and 7 September 2026.

Yours sincerely,

Stephen Prothero
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